

TENTATIVE RULINGS

**DEPT. CX103
(657-622-5303)**

**Judge David A. Hoffer
July 06, 2026**

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If a party intends to submit on the Court's tentative ruling, please call the Court Clerk to inform the court. If both parties submit, the tentative ruling will then become the order of the Court.

APPEARANCES: Department CX103 conducts non-evidentiary proceedings, such as law and motion, remotely by Zoom videoconference. All counsel and self-represented parties appearing for such hearings should check-in online through the Court's civil video appearance website at <https://www.occourts.org/media-relations/civil.html> prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and an instructional video are available on the court's website. All remote video participants shall comply with the Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also posted online at <https://www.occourts.org/media-relations/aci.html>. A party choosing to appear in person can do so by appearing in the courtroom on the date/time of the hearing.

Court Reporters: Parties must provide their own remote court reporters (unless they have a fee waiver). Parties must comply with the Court's policy on the use of privately retained court reporters which can be found at:

- Civil Court Reporter Pooling; and
- Court Reporter Interpreter Services

THE PARTIES ARE PROHIBITED BY RULE OF COURT AND LOCAL RULE FROM PHOTOGRAPHING, FILMING, RECORDING, OR BROADCASTING THIS COURT SESSION.

#	Case Name	
1	30-2023-01337693 McArthur vs. Wyndham Vacation Ownership, Inc.	The tentative ruling is to continue the Final Report Hearing to August 10, 2026 at 1:30 p.m. to confirm that the amount of the uncashed checks after the check-cashing deadline has been delivered to the State Controller's Office Unclaimed Property Fund in the names of the applicable payees, that the Administrator's work is complete, and that the court's file thus

		may be closed. All supporting papers must be filed at least 16 days before the Final Report Hearing date. IT IS ORDERED THAT within five (5) days of this ruling, all uncashed check funds shall be distributed by the settlement administrator to the State Controller of California's Unclaimed Property Fund in accordance with the settlement approved by the court. (Settlement ¶ 6(E).) Plaintiff is ordered to give notice of this ruling to Defendant.
2	30-2019-01046637 Jones vs. Liberty Dental Plan, Inc.	Plaintiff Micshall Jones ("Plaintiff") Motion for Final Approval of Class Action and PAGA Settlement is GRANTED IN PART. The court concludes that the \$1,500,000.00 class action and PAGA settlement is fair, adequate and reasonable, and approves the following specific awards: • \$450,000.00 to plaintiff's counsel for plaintiff's attorneys' fees, reduced from the \$525,000.00 requested; • \$17,628.94 to plaintiff's counsel for plaintiff's litigation costs, reduced from the \$17,651.54 requested; • \$5,000.00 to Plaintiff as enhancement award, reduced from the \$15,000.00 requested; • \$9,000.00 to Simpluris, the settlement administrator, as requested; and • \$168,750.00 to the LWDA for its share of PAGA penalties, as requested. The total amount that will be payable to all class members and aggrieved employees, if they are paid the amount to which they are entitled pursuant to the judgment, is \$849,621.06. The Final Accounting hearing is set for March 22, 2027 at 1:30 p.m. in Department CX103. At least sixteen (16) calendar days before the hearing, Class Counsel and the Settlement Administrator shall submit a summary accounting of the distribution of the settlement funds to Class Members and Aggrieved Employees, identifying the distributions made pursuant to this Order and Judgment, and identifying the number and value of any uncashed checks, and the status of any unresolved issues.